

HOUSE No. 2006

The Commonwealth of Massachusetts

PRESENTED BY:

Alyson M. Sullivan-Almeida

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act strengthening sexual harassment and discrimination policies in the Commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Alyson M. Sullivan-Almeida</i>	<i>7th Plymouth</i>	<i>1/16/2025</i>

HOUSE No. 2006

By Representative Sullivan-Almeida of Abington, a petition (accompanied by bill, House, No. 2006) of Alyson M. Sullivan-Almeida relative to sexual harassment and discrimination policies in the Commonwealth. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1775 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act strengthening sexual harassment and discrimination policies in the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 4 of chapter 151B of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by striking out subsection 16A and inserting in place thereof the following:-

3

4 16A. For an employer, personally or through its agents, to sexually harass any employee;
5 or to retaliate, personally or through its agents, against any employee for filing a complaint of
6 sexual harassment or discrimination based on sex, gender identity or sexual orientation or for
7 cooperating in an investigation of a complaint of sexual harassment or discrimination based on
8 sex, gender identity or sexual orientation, including, but not limited to, by termination,
9 suspension, demotion or reduction in the compensation or benefits of the employee; or to require,

10 as a condition of employment, continuing employment, promotion, compensation or the receipt
11 of benefits, entering into an agreement that contains a nondisclosure or confidentiality provision
12 (except as may be necessary to protect business intellectual property and trade secrets), a non-
13 disparagement provision, a restriction on reporting sexual harassment or discrimination based on
14 sex, gender identity or sexual orientation or participating in the investigation of a report of sexual
15 harassment or discrimination based on sex, gender identity or sexual orientation, or a waiver of
16 any rights or remedies available under law with respect to claims filed or that may be filed in a
17 civil action or complaints filed or that may be filed in an administrative action for sexual
18 harassment or discrimination based on sex, gender identity or sexual orientation.